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Fish and Wildlife Governance

Week 5 Wednesday — Who can act, who must be involved, what constrains them?

NRES 315: Human Dimensions of Fish and Wildlife Management

Last updated: 2025-09-26

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Monday asked who is recognized

Monday's answer was that presence is not influence, and that a process without shared influence tends to produce decisions that do not hold.

Today asks the mechanical follow-up: **what determines whether influence can be shared at all?**

Source: Chapter 5, §5.2

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Today's question

Who can act, who must be involved, and what constraints shape the decision?

Source: Chapter 5, §5.2

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What you should be able to do

By the end of today, you should be able to:

- define governance and distinguish it from an agency's day-to-day action;
- name the four foundations and apply the good-governance criteria;
- identify the authority, implementation, accountability, and relationship questions in a real decision; and
- explain how funding operates as a governance mechanism.

Source: Chapter 5, §§2.3–5.6

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Governance is not background
It determines what management is
allowed, expected, and able to do.

Source: Chapter 5, §5.2

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What governance means

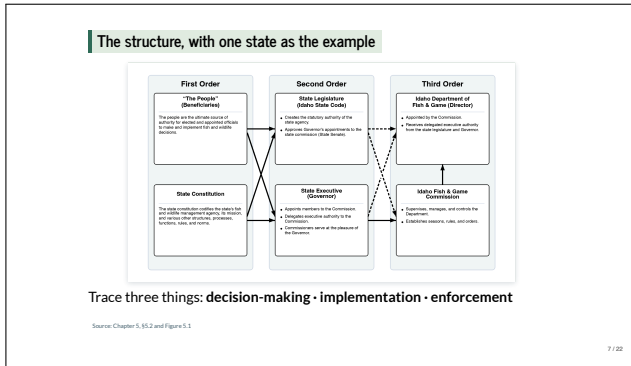
Governance is the interplay of **rules, policies, institutions, and powers** that guide decision-making, implementation, and enforcement.

A biologist may identify a habitat problem, harvest concern, disease risk, or access need. The response depends on statutes, budgets, commissions, courts, Tribal authority, landownership, public support, and administrative capacity.

Source: Chapter 5, §5.2

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Four foundations, four questions

Foundation	The question it answers
Deliberative democracy	Who gets a voice?
Public trust thinking	Who owns or benefits from wildlife?
Sustainable use	How much use is sustainable?
Precautionary principle	How should agencies act when the risk of inaction is high?

Source: Chapter 5, §§3.1.1–5.3.1.4

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The foundations can pull against each other

A decision can seek participation, public benefit, sustainable use, and caution under uncertainty at the same time — and those aims can point in different directions.

Source: Chapter 5, §5.2

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Seven tenets of the North American Model

1. Wildlife is conserved and held in **public trust** for all citizens.
2. Commerce in dead wildlife is eliminated.
3. Wildlife is allocated by the democratic **rule of law**.
4. Wildlife may be killed only for a legitimate, non-frivolous purpose.
5. Wildlife is an **international resource**.
6. Everyone has equal opportunity under the law to hunt and fish.
7. **Scientific management** guides wildlife conservation.

Source: Chapter 5, Box 5.1

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Critiques the North American Model

A **historical summary** of how wildlife management developed, largely from the 1920s through the 1950s. Seven principles, with wildlife as a public trust at the core.

Critiques it has drawn:

- continued biodiversity loss and nongame decline;
- a strong emphasis on hunting, fishing, and game;
- limited recognition of Tribal and First Nations rights and perspectives; and
- limited attention to nonconsumptive users, animal welfare, and spiritual significance.

Source: Chapter 5, Box 5.1

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Good governance is more than biological success

Chapter 5 offers ten criteria that can be clustered into six qualities

1. responsive
2. inclusive of diverse perspectives
3. transparent and accessible
4. accountable
5. sustainable and
6. adaptable
6. coordinated across boundaries

Source: Chapter 5, §§5.2.2–5.2.3

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Governance in action
Decisions are distributed across overlapping jurisdictions, not located in a single office.

Source: Chapter 5, §5.4

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Who holds authority

- **Federal:** migratory birds, threatened and endangered species, marine mammals, interstate commerce; NEPA applies to federal lands, federal funding, or ESA-listed species.
- **Tribes and First Nations:** sovereign entities with inherent rights, their own programs, commissions, and law enforcement.
- **States, provinces, territories:** broad authority within their borders under the state ownership doctrine; commissions of 4–19 members typically set regulations.
- **Courts:** the 2024 ruling overturning the Chevron Doctrine shifted interpretation of ambiguous statutes from agency experts to judges.

Source: Chapter 5, §§4.1–5.4.3 and §§5.5.1–5.5.3

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Most habitat is not public

About **60%** of land in the United States is privately owned. In Nebraska, it is roughly **97%**.

- Landowners do not own the wildlife on their property; the public trust doctrine still applies.
- Conservation is rarely a legal obligation without an instrument such as a conservation easement.
- So governance reaches private land mostly through **incentives**: CRP and WRP (1985), Forest Legacy (1990), EQIP and CSP (1996), Working Lands for Wildlife (2012).

Source: Chapter 5, §5.4

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Funding is a governance mechanism

Funding shapes what agencies can do, who they answer to, and which work is feasible.

- Federal excise-tax programs support state fish and wildlife work.
- State, Tribal, Canadian, NGO, and mitigation sources create other pathways.
- Diverse revenue expands capacity — and each source carries its own constraints and expectations.

Source: Chapter 5, §5.6

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Collaboration and comanagement**Collaboration**

People work together to find common ground, solve problems, and respond to conflict. May or may not hold decision authority.

Comanagement

A formal or informal arrangement in which **sovereign entities** share responsibility and authority.

Source: Chapter 5, Box 5.2

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What makes collaboration hold

- Engage every relevant interest; work to understand others' interests.
- Make sure participants know their **BATNA** — best alternative to a negotiated agreement.
- Send representatives who are knowledgeable **and empowered** by their organizations.
- Share control where appropriate.
- Build trust by following through on commitments.
- Treat partnerships as long-term relationships.

Its weakness: one participant can undermine the process if they believe they have more to gain by doing so. Participants must have something to lose and something to gain.

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Four practical questions for any decision

1. **Authority:** Who can make or change the decision?
2. **Implementation:** Who has to carry it out?
3. **Accountability:** Who can evaluate or challenge the decision?
4. **Relationships:** Which governments, publics, and partners must be involved for the decision to work?

Source: Chapter 5, §§2.2–5.3

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Pair rehearsal: make one governance claim

With a partner, complete this claim about Friday's case:

The decision is made by ____ under the constraint of _____. It cannot be implemented without _____. One party that can challenge or block it is _____.

Source: Chapter 5, §§4.4–5.5

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Friday

Read the **Week 05 Case Brief: the Cottonwood River Access and Restoration Plan** before class. All case facts are in it; bring the concepts from Chapters 4–5 and this week's class work.

Your group and role are already published in **Friday Application 05: Group and Role Assignments**.

Source: Chapters 4–5

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Close

A governance analysis asks not only what should happen ecologically, but what set of relationships and regulations can make the action possible.

Source: Chapter 5, §5.5

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